

TENTATIVE RULINGS**7/30/2026****02:00 PM**

100	Valle vs. EXPRESS FURNITURE SERVICES LLC 2020-01175109	Final Accounting The settlement administrator, ILYM Group, Inc., has confirmed that the distribution of the settlement funds has been completed and made in accordance with the terms of the settlement that were approved by the Court. As Plaintiff has shown that the administrator's work is complete, the Court's file may now be closed. Plaintiff is ordered to give notice of this ruling to Defendant.
101	Chang vs. HIOSSEN, Inc., a California corporation 2025-01535790	Motion to Appear Pro Hac Vice Defendant Hiossen Inc.'s application for pro hac vice admission of attorney Michael J. Slocum is GRANTED . On or before the anniversary of the date of this order, if this attorney remains counsel for the moving party, the moving party must pay an annual renewal fee of five hundred dollars (\$500) for each year that the attorney maintains pro hac vice status in this case. (Gov. Code, § 70617, subd. (e)(2).) Moving party shall provide notice.
102	Balt USA, LLC vs. Treadstone Medical LLC 2021-01237081	Motion for Leave to File Amended Complaint Plaintiff Balt USA, LLC's motion for leave to amend is GRANTED . As a preliminary matter, the instant motion fails to comply with the relevant procedural rules for filing a motion. Rules of Court (CRC), rule 3.1112 specifies that "the papers filed in support of a motion must consist of at least the following: [¶] (1) A notice of hearing on the motion; (2) [t]he motion itself; and (3) [a] memorandum in support of the motion. . . ." (See also <i>Luri v. Greenwald</i> (2003) 107 Cal.App.4th 1119, 1126 [all three elements must be present for a valid motion].) Code of Civil Procedure (CCP) section 1010 requires a "notice of motion" that "must state when, and the grounds upon which it will be made, and the papers, if any, upon which it is to be based." CRC, rule 3.1110(a) also requires a "notice of motion" that "must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order." Here, Plaintiff has not filed a notice of motion and motion as required by CRC, rule 3.1112, much less a notice of motion that satisfies the requirements of CCP section 1010 and CRC, rule 3.1110. Plaintiff filed only a memorandum of points and authorities. (ROA #1975.)

Under such circumstances, the trial court may “reasonably reject[] the entire motion as defective and noncompliant with California rules and statutes.” (*Luri, supra*, 107 Cal.App.4th at p. 1127.) However, “[a]n omission in the notice may be overlooked if the supporting papers make clear the grounds for the relief sought.” (*Id.* at p. 1125.) “In that situation, the trial court may treat the supporting papers as curing the defective notice.” (*Id.* at p. 1127.)

Accordingly, the Court will exercise its discretion to excuse, this time, the procedural defects with Plaintiff’s motion. However, the Court **ADMONISHES** Plaintiff’s counsel to comply with basic court rules and procedures for future filings or risk the papers being rejected for noncompliance.

Applicable Legal Standards

“The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading” (Code Civ. Proc. [CCP], § 473, subd. (a)(1).) Further, “[a]ny judge, at any time before or after commencement of trial, in the furtherance of justice, . . . may allow the amendment of any pleading” (CCP § 576.)

“[C]ourts are bound to apply a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial,” so long as “no prejudice is shown to the adverse party.” (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761 [internal quotes and citations omitted].) “The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428.)

“If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend; and, where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (*Morgan v. Super. Ct.* (1959) 172 Cal.App.2d 527, 530.) Indeed, “judicial policy favors resolution of all disputed matters in the same lawsuit,” and “it is irrelevant that new legal theories are introduced as long as the proposed amendments ‘relate to the same general set of facts.’” (*Kittredge Sports Co. v. Super. Ct.* (1989) 213 Cal.App.3d 1045, 1047-1048, quoting *Hirsa v. Super. Ct.* (1981) 118 Cal.App.3d 486, 489.)

Leave to amend may be denied if the party seeking the amendment has been dilatory *and* the delay has prejudiced the opposing party. (*See Hirsa, supra*, 118 Cal.App.3d at p. 490.) Delay is most likely to result in prejudice warranting a denial of leave to amend “[w]here the trial date is set, the jury is about to be impaneled, counsel, the parties, the trial court, and the witnesses have blocked the time, and the only way to avoid prejudice to the opposing party is to continue the trial date to allow further discovery.” (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 488.)

But “it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (*Kittredge, supra*, 213 Cal.App.3d at p. 1048.) “[W]here no prejudice is shown to the adverse party, the liberal rule of allowance prevails.” (*Atkinson, supra*, 109 Cal.App.4th at p. 761.)

California Rules of Court (CRC), rule 3.1324 requires that a motion to amend include a copy of the proposed amendment or amended pleading; identify by page, paragraph, and line number any additions to and deletions from the prior pleading; and include a supporting declaration that specifies:

1. The effect of the amendment;
2. Why the amendment is necessary and proper;
3. When the facts giving rise to the amended allegations were discovered; and
4. The reasons why the request for amendment was not made earlier.

(CRC, rule 3.1324(a), (b).)

Application

Here, Plaintiff seeks leave to file a fourth amended complaint (“4AC”) that would add 2 claims—i.e., an 11th cause of action against the Individual Defendants for a breach of their employment agreements by taking Balt’s confidential information, and a 12th cause of action against the Individual Defendants, Infinity Neuro, m4D, and Sonorous for misappropriation of trade secrets. (ROA #1969 [Kohan Decl.], ¶ 79; see also *id.* at Exh. 71 [redline comparing 4AC with 3AC].)

Plaintiff contends that the amendments are necessary and proper because “Balt only just discovered Defendants’ . . . theft of Balt’s confidential information and trade secrets from M4D’s May 27, 2026 [document] production.” (*Id.* at ¶ 80.) Plaintiff contends that the reason why Balt only discovered these documents on May 27, 2026 is because “Defendants have been hiding discovery from Balt for years,” with “the Individual Defendants claim[ing] that they only took one presentation from Balt, and M4D sw[ea]r[ing] that its employees, agents, and representatives took nothing from Balt either.” (*Id.* at ¶ 82.)

Plaintiff contends that the subject documents should have been produced in response to Plaintiff’s initial document requests served on 2/15/2022. (ROA #1975 [Mot. P&A], pp. 5, 7, citing Kohan Decl. at Exhs. 2-4.) These requests sought “All DOCUMENTS and COMMUNICATIONS YOU took from BALT, including any DOCUMENTS or COMMUNICATIONS with BALT’s confidential or proprietary information, like schematics or other medical device drawings or plans.” (Kohan Decl., Exhs. 2-4, Document Requests No. 34.) Admittedly, these February 2022 requests were directed only at the Individual Defendants, i.e., David Ferrera; Dawson Le; Randall Takahashi. (*Id.*) But in 2024, Plaintiff also propounded document requests on Defendant M4D, LLC, seeking “ALL DOCUMENTS YOU took from BALT.” (*Id.* at Exh. 67, Request No. 75.)

		In any case, Plaintiff contends that “Defendants uniformly denied they had any of Balt’s information in their possession, custody or control.” (Mot. P&A at p. 5, citing Kohan Decl. at ¶¶ 4-6, Exhs. 2-4.) Further, “during depositions, the Individual Defendants and 30(b)(6) witnesses all denied that the Defendants had any confidential information belonging to Balt.” (<i>Id.</i>, citing Kohan Decl. at ¶¶ 10-14, Exhs. 5-8.) M4D also “lied, stating that documents it took from Balt ‘do not exist and never existed.’” (<i>Id.</i> at p. 7, citing Kohan Decl., Exh 67 at p. 73.) Nevertheless, through numerous discovery disputes and the appointment of a discovery referee and a forensic neutral, “Balt never stopped requesting documents on the topic, however, because Defendants produced a handful of documents, which cast doubt on Defendants’ discovery responses and sworn testimony, i.e., Defendants’ vehement denial that they had any of Balt’s confidential information. For example, one internal M4D email suggested that M4D had a folder that contained certain Balt documents, which the M4D employees were using to develop knock off Balt products. See Exs. 17-18. Another email suggested that an M4D employee sought to solicit a Balt employee for internal Balt documents, again in connection with a project to develop knockoff Balt products. See Ex. 69.” (<i>Id.</i> at p. 6.) Then, on April 2, 2026, “a lower-level employee at M4D, Hung Nguyen, testified truthfully about how the Individual Defendants had provided M4D with open access to Balt’s confidential and sensitive technical files for many different kinds of Balt products. [Citations omitted.] Contrary to what the Individual Defendants had testified, Hung Nguyen testified that M4D did have shared folders that stored Balt’s confidential information—and that the Individual Defendants encouraged M4D employees to leverage that information while developing similar products for M4D and its customers.” (<i>Id.</i> at pp. 6-7, citing Kohan Decl., Exh. 21, <i>passim</i>.) After Nguyen’s deposition, on 5/27/2026, M4D finally produced “more than 22,000 documents,” which included “a massive volume of Balt’s trade secrets and confidential information—essentially the entire technical files for multiple Balt products and manufacturing processes.” (<i>Id.</i> at p. 7, citing Kohan Decl. at ¶¶ 31-32.) Not only did these files involve “products of which M4D had developed its own knockoff versions” but also “other Balt products that it has not yet created a knockoff version.” (<i>Id.</i> at pp. 6-7, citing Kohan Decl., Exhs. 25-35.) In opposition to the instant motion, Defendants do not dispute any of these basic facts. Instead, Defendants contend that Plaintiff has unreasonably delayed in bringing the instant motion because (1) “back in 2024, Balt told the Court in a prior motion for leave to amend that it sought leave to add claims related to alleged misappropriation of trade secrets, [y]et it chose not to plead those claims”; (2) “before May 2026, Plaintiff already had evidence that M4D allegedly developed knockoff Balt products and internal M4D emails suggesting that M4D had Balt documents being used for that purpose,” as well as “documents concerning Titan specifications and confidential design verification materials, Squid technical files, LAVA testing, and M4D common-drive storage,” which Plaintiff used in a
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		deposition of Defendant Le;¹ and (3) Defendants will suffer prejudice because discovery has closed, the trial date is in November 2026, and “Balt moved only after Defendants identified motions in limine to exclude unpleaded trade-secret and confidential-information theories concerning Titan, Squid, and related issues.” (ROA #2014 [Opp.], p. 1.) These arguments are unavailing. First, as to Plaintiff’s 2024 motion for leave to file a first amended complaint (FAC), although the moving memorandum of points and authorities make one mention that Plaintiff wished to “add claims related to the misappropriation of trade secrets,” ultimately, the actual amendments sought to be made by the 2024 motion consisted of adding new defendants (i.e., Defendants Sonorous Neurovascular Inc., RC Medical, LLC, Infinity Neuro China Co., Ltd., and Single Pass, Inc.). (ROA #522; see also ROA #519, ¶ 2.) Therefore, it appears that the reference to adding “claims related to the misappropriation of trade secrets” was in error at least with respect to the amendments that were actually sought by proposed FAC. Also, in light of the timeline of Plaintiff’s discovery efforts, it makes sense that in 2024, Plaintiff was hoping that it would be able to add misappropriation claims, as Plaintiff was actively pursuing discovery to confirm that its documents containing trade secrets had in fact been taken by Defendants. However, Defendants continued to deny they had taken such documents or otherwise had such documents in their possession—until Nguyen’s deposition testimony in April 2026. As Plaintiff explains, without “evidentiary support,” Plaintiff could not in good faith amend its complaint to allege claims for misappropriation of trade secrets. (See CCP, § 128.7, subd. (b)(3).) And with Defendants consistently denying they took such documents or had such documents in their possession, Plaintiff also did not even have a good-faith basis for certifying that its misappropriation of trade secret claims “are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.” (See <i>id.</i>; see also <i>Optimal Markets, Inc. v. Salant</i> (2013) 221 Cal.App.4th 912, 921, internal citations omitted [as “Section 128.7 was modeled nearly verbatim upon the federal statute, Rule 11 . . . , California courts may consider federal cases construing Rule 11 in interpreting the language of section 128.7”]; <i>Vasquez Perdomo v. Noem</i> (C.D.Cal., Apr. 7, 2026, No. 25-cv-05605-MEMF-SP) 2026 WL 1047696, at *5 (slip copy) [“The fact that the claims are consistent with Plaintiffs’ earlier pleadings does not undercut Plaintiffs’ argument that discovery allowed them to make additional allegations of Defendants’ alleged unlawful acts. To the contrary, Rule 11 requires that Plaintiffs make only allegations that are warranted by law. Whether or not Plaintiffs could have contemplated these theories earlier is beside the point; until they had this evidence . . . , they did not determine that these theories were viable or that they had a good-faith basis to assert them.”].)
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¹ The Court notes that the Declaration of Kelly Champ failed to attach the exhibits. (See ROA #2016.) Nevertheless, the Court was able to deduce what these exhibits contained based on the descriptions provided in Defendants’ opposition brief. (See Opp. at pp. 4-6.)

Moreover, once a misappropriation of trade secret claim is alleged, “before commencing discovery relating to the trade secret, the party alleging the misappropriation shall identify the trade secret with reasonable particularity subject to any orders that may be appropriate under Section 3426.5 of the Civil Code.” (CCP, § 2019.210; see also *Altavion, Inv. v. Konica Minolta Systems Laboratory, Inc.* (2014) 226 Cal.App.4th 26, 43-44, quoting *Diodes, Inv. v. Franzen* (1968) 260 Cal.App.2d 244, 253 [“The trade secret must be described ‘with sufficient particularity to separate it from matters of general knowledge in the trade or of special knowledge of those persons who are skilled in the trade, and to permit the defendant to ascertain at least the boundaries within which the secret lies’”]; *Whyte v. Schlage Lock Co.* (2002) 101 Cal.App.4th 1443, 1452-1453 [“[i]nformation about [Plaintiff]’s new products” is “too broad to enforce because it does not differentiate between truly secret information (such as formulas and product design) and new product information which has been publicly disclosed”].)

In short, Plaintiff was justified in waiting until it had sufficient evidentiary support and a good-faith basis before seeking to actually amend its complaint to allege claims for misappropriation of trade secrets against Defendants.

The same reasoning applies to Defendants’ arguments based on various documents that Plaintiff allegedly already had in its possession and used at depositions before Nguyen’s 2026 testimony. (See Opp. at pp. 4-6.) Defendants even admit that “these documents do not establish trade-secret use.” (*Id.* at p. 4.) At most, Plaintiff had documents *suggesting* that Defendants could have misappropriated Plaintiff’s trade secrets. Ultimately, it was Defendants’ continued denial that they had such documents in their possession and their continued refusal to produce responsive documents already sought in discovery that deprived Plaintiff of the evidentiary support necessary to amend their complaint.

As for Defendants’ prejudice arguments, at bottom, Plaintiff “cannot be faulted for the delay” because “[i]t was the late acquisition of documents . . . that gave [Plaintiff] evidence to support [its claim],” and Defendants do “not dispute that [they] failed to produce the documents [them]selves.” (*Thomson Pacific Construction, Inc. v. City of Sunnyvale* (2007) 155 Cal.App.4th 525, 545.) Thus, while Defendants contend that they would be prejudiced because allowing Plaintiff to amend the complaint would require Defendants to either defend the new claims without the benefit of discovery since discovery has already closed, or the trial date and pretrial deadlines would need to be continued, ultimately, any such prejudice is Defendants’ own fault.

The Court does acknowledge Sonorous’s arguments that Plaintiff “has identified no deficiencies in Sonorous’s production or response” and has had “the complete design history file for the Bosstent” by September 2025, and thus, Plaintiff’s arguments about M4D’s delayed production “fails to excuse Balt’s delay against Sonorous.” (ROA #2008 [Sonorous Opp.], pp. 10-11.) However, the Court also accepts Plaintiff’s rebuttal that “Sonorous’[s] argument essentially relies on the faulty premise that Balt’s trade secrets are

		relevant only to Sonorous only if the trade secrets are part of the technical files for Balt’s braided tent product, known as the Leo,” as Plaintiff alleges that “the ‘Bosstent’ is a ‘venous stent system’” that “includes a delivery catheter that would benefit from Balt’s trade secrets related to Balt catheter products, like the Ballast or Titan,” about which documents were produced as part of M4D’s May 2026 production. (ROA #2024 [Reply to Sonorous Opp.], p. 4.) Plaintiff also contends that “the misappropriated trade secrets also contain information related to equipment, material and test protocols that would be valuable for Defendants’ development of the Bosstent system.” (<i>Id.</i>) Indeed, Defendants—including Sonorous—also make various other arguments challenging the substantive merit of Plaintiff’s proposed 4AC, including whether Plaintiff’s misappropriation of trade secret claims are barred by applicable statutes of limitations and whether the proposed 4AC pleads sufficient facts to state a claim for misappropriation of trade secrets against any particular Defendant. But these issues are not ripe for adjudication at this time, and certainly not on the record and arguments currently before the Court, and especially to the extent they involve disputed factual contentions. (See <i>Atkinson v. v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 760 [“better course of action” is to grant leave to amend the complaint “and then let the parties test its legal sufficiency in other appropriate proceedings”].) <i>At the hearing on the motion, the Court will hear from the parties on setting an appropriate new trial date in light of this ruling.</i> Plaintiff is ORDERED to separately file the proposed 4AC with the Court within 3 court days and serve all Defendants within 30 days. The 4AC must be filed as a separate document to ensure it is properly indexed in the record. Moving party shall give notice.
104	Thomas vs. ADECCO USA, INC. 2025-01486759	1. Motion to Compel Arbitration 2. Joinder 3. Case Management Conference In light of Plaintiff Kevin M. Thomas’s Statement of Non-Opposition (ROA #58) to Defendant Adecco USA, Inc.’s Motion to Compel Arbitration (ROA #44), the Court GRANTS Defendant Adecco’s motion. Plaintiff also has not filed any opposition to the Joinder of Defendant Rutgers, the State University of New Jersey (erroneously sued herein as Vets4Warriors) in Defendant Adecco’s motion, which asserts that “the arguments and contentions set forth in its Motion are equally applicable to Rutgers.” (ROA #50.) Accordingly, the Court also GRANTS Defendant Rutgers’s joinder. Plaintiff is ORDERED to arbitrate his individual claims against Defendants Adecco and Rutgers. Plaintiff’s representative claims are otherwise STAYED until the arbitration is had pursuant to Code of Civil Procedure section 1281.4.